



CHAPTER cxxviii.

An Act to confirm a Provisional Order of the Local A.D. 1914.
Government Board relating to Okehampton (Rural).
[31st July 1914.]

WHEREAS the Local Government Board have made the
Provisional Order set forth in the schedule hereto under
the provisions of the Housing Town Planning &c. Act 1909 : 9 Edw. 7.
c. 44.

And whereas it is requisite that the said Order should be
confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty
by and with the advice and consent of the Lords Spiritual and
Temporal and Commons in this present Parliament assembled
and by the authority of the same as follows :—

1. The Order set out in the schedule hereto shall be and Order in
the same is hereby confirmed and all the provisions thereof shall schedule
have full validity and force. confirmed.

2. This Act may be cited as the Local Government Board's Short title.
Provisional Order Confirmation (Housing) Act 1914.

A.D. 1914.

S C H E D U L E.

RURAL DISTRICT OF OKEHAMPTON.

*Okehampton
Rural
(Housing)
Order.*

*Provisional Order made in pursuance of the Housing Town
Planning &c. Act 1909.*

To the Rural District Council of Okehampton ; —

And to all others whom it may concern.

53 & 54 Vict.
c. 70.

WHEREAS on the Twenty-seventh day of September One thousand nine hundred and thirteen the Rural District Council of Okehampton (herein-after referred to as "the Local Authority") being the Local Authority for the Rural District of Okehampton for the purposes of Part III. of the Housing of the Working Classes Act 1890 made the Order (herein-after referred to as "the Scheduled Order") set forth in the Schedule hereto ;

9 Edw. 7.
c. 44.

And whereas in pursuance of the provisions of Section 2 of the Housing Town Planning &c. Act 1909 (herein-after referred to as "the Act of 1909") and of the First Schedule to that Act the Local Authority have submitted the Scheduled Order to the Local Government Board for confirmation ;

And whereas the Scheduled Order is in the form prescribed in accordance with the requirements of paragraph (4) of the First Schedule to the Act of 1909 ;

And whereas objections to the Scheduled Order having been presented to the Local Government Board by persons claiming to be interested in the land proposed to be acquired within the period prescribed for the purposes of paragraph (6) of the First Schedule to the Act of 1909 that Board in accordance with the provisions of the said paragraph caused a public inquiry to be held in the locality in which the land is proposed to be acquired ;

And whereas the Local Government Board have considered the report of the person who held the inquiry and all objections made thereat ;

And whereas by Section 73 of the Act of 1909 it is provided that where any order under the Housing Acts authorises the acquisition of any land forming part of any common the order so far as it relates to the acquisition of such land shall be provisional only and shall not have

[4 & 5 GEO. 5.] *Local Government Board's* [Ch. cxxviii.]
Provisional Order Confirmation (Housing) Act, 1914.

effect unless and until it is confirmed by Parliament except where the order provides for giving in exchange for such land other land in accordance with the provisions of the said Section 73 ;

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(Housing)
Order.

And whereas it is alleged that the freeholders of Chagford and persons renting land and dwellings in Chagford have for three months in each year certain rights of common in respect of the land proposed to be acquired in pursuance of the Scheduled Order :

Now therefore We the Local Government Board in pursuance of the powers given to Us by the Act of 1909 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall take effect :—

Art. I. Subject as herein-after provided the Scheduled Order shall be confirmed. Confirmation
of Scheduled
Order.

Art. II. Paragraph 3 of the Scheduled Order shall be modified by the substitution for the words "date of its confirmation by the Local Government Board" of the words "date of the Act of Parliament confirming the Order made by the Local Government Board for confirming this Order." Modification
of Para-
graph 3 of
Scheduled
Order.

Art. III. This Order may be cited as the Okehampton Rural Short title.
(Housing) Order 1914.

The SCHEDULE above referred to.

The Rural District Council of Okehampton in the County of Devon hereby make the following Order :—

1. The provisions of the Lands Clauses Acts with respect to the purchase and taking of land otherwise than by agreement are subject to the terms of the Housing Town Planning &c. Act 1909 and of this Order hereby put in force as respects the purchase by the said Rural District Council of the lands described in the Schedule hereto for the purposes of Part III. of the Housing of the Working Classes Act 1890.

2. This Order shall have effect as if there were incorporated therewith subject to the necessary adaptations the Lands Clauses Acts (except Section 127 of the Lands Clauses Consolidation Act 1845) and Sections 77 to 85 of the Railways Clauses Consolidation Act 1845 but subject to this modification that any question of disputed compensation shall be determined by a single arbitrator appointed by the Local Government Board who shall be deemed to be an arbitrator within the meaning of the Lands Clauses Acts and the provisions of those

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A.D. 1914. Acts with respect to arbitration shall subject to the provisions of the First Schedule to the Housing Town Planning &c. Act 1909 apply accordingly.

*Okehampton
Rural
(Housing)
Order.*

3. This Order shall come into operation from and after the date of its confirmation by the Local Government Board.

4. This Order may be cited as the Okehampton Rural District Council (Chagford Housing Scheme) Purchase of Sites Order 1913.

The SCHEDULE above referred to.

Number on Plan deposited at the Offices of the Rural District Council of Okehampton.	Quantity Description and Situation of the Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
698	5.142 acres of arable land situate abutting on the east side of the public roadway leading from New Street and Meldon Road in a southerly direction towards premises known as "The Quarries," and which said piece of land is distinguished by a pink colour on the deposited plan.	The County Council of Devon.	Nil.	J. S. Perrott (as yearly tenant).

Given under the Common Seal of the Rural District Council of Okehampton this twenty - seventh day of September One thousand nine hundred and thirteen.

L.S.

Given under the Seal of Office of the Local Government Board this Eleventh day of May One thousand nine hundred and fourteen.

(L.S.)

HERBERT SAMUEL President.
H. C. MONRO Secretary.

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